Case No. N011359

IN THE SUPREME COURT OF THE STATE OF OREGON

STATE OF OREGON, Plaintiff–Respondent, Respondent on Review,	)	Washington County Circuit Court Case No. 17CR69999
v.	)	Court of Appeals Case No. A169208
MICHAEL HENRY FORKER, Defendant–Appellant, Petitioner on Review.	)	Supreme Court Case No. N011359

MOTION OF THE AMERICAN CIVIL LIBERTIES UNION AND AMERICAN CIVIL LIBERTIES UNION OF OREGON FOR LEAVE TO FILE BRIEF OF AMICI CURIAE IN SUPPORT OF DEFENDANT–APPELLANT FORKER IN THE EVENT REVIEW IS ALLOWED

Amici curiae the American Civil Liberties Union and the American Civil Liberties Union of Oregon, pursuant to Rule 8.15(5)(b) of the Oregon Rules of Appellate Procedure, respectfully move this Court for leave to file a brief in support of Defendant–Appellant Forker's Petition for Review, as well as on the merits in the event that review is granted. Amici have conferred with counsel for both parties and neither party objects to this motion. In support of this motion, amici state the following:

INTERESTS OF AMICI CURIAE

The American Civil Liberties Union ("ACLU") is a nationwide, nonprofit, nonpartisan organization dedicated to the principles of liberty and

equality embodied in the Constitution and our nation's civil rights laws. The American Civil Liberties Union of Oregon ("ACLU of Oregon") is the Oregon state affiliate of the national ACLU.

Since its founding in 1920, the ACLU has frequently appeared before the U.S. Supreme Court and other state and federal courts in numerous cases implicating Americans' right to privacy in the digital age, including as counsel in *Carpenter v. United States*, 138 S Ct 2206 (2018), and as amicus in *State v. Turay*, No. S068894 (Or argued May 3, 2022); *State v. Pittman*, 367 Or 498, 479 P3d 1028 (2021) (en banc); and *United States v. Warshak*, 631 F3d 266 (6th Cir 2010).

WHY REVIEW SHOULD BE ALLOWED WITH AMICI'S PARTICIPATION ON THE MERITS

In cases like this one, amici have consistently aided courts by presenting arguments that federal and state constitutions protect people from prosecutors retaining their data "just in case" and subsequently exploiting it, even after searches have been fully executed and the criminal process has completely played out. *See, e.g.*, Brief for Amici Curiae Center for Democracy & Technology et al. in Support of Defendant–Appellant, *United States v. Ganias*, 824 F3d 199 (2d Cir 2016) (No. 12-240) (en banc);[1] Motion of the American Civil Liberties Union and American Civil Liberties Union of Illinois for Leave

[1] *available at* https://www.eff.org/files/2015/07/29/eff_ganias_amicus_brief.pdf.

to File Brief Amici Curiae in Support of Defendant–Appellee, *People v. McCavitt*, 2021 IL 125550 (Ill 2021) (No. 125550).[2]

This case raises this important question. While the majority below did not address the merits of the Fourth Amendment question identified here, the dissent compellingly argues that the question is unavoidable. *See Forker*, 323 Or App at 354–59 (James, P.J., dissenting). Amici respectfully urge the Court to allow review here, and to permit amici's participation in the proceeding in this Court on the merits.

Dated: March 23, 2023

Respectfully submitted,

/s/ Rachel S.D. Gale

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[2] *available at* https://www.aclu.org/wp-content/uploads/legal-documents/2021-03-03_motion_and_brief_of_amici_aclu_and_aclu-il_-_filed.pdf.